

01

CONCEPT + EVOLUTION

1853 competitive turn -> 1919 provision -> first PSC, 1 Oct 1926 -> 1935 federal design -> Constitution, 26 Jan 1950

PSC protects recruitment process; government owns posts, rules and appointment; courts review legality.

Firewall: UPSC/SPSC/Joint PSC != SSC != statutory recruitment boards.

ARTICLE 315 FEDERAL FORMS

ARTICLE 315

315(1) Union + State baseline

315(2)-(3) State resolutions -> parliamentary law -> Joint PSC

315(4) Governor request + President approval + UPSC agreement

320(2) separate joint recruitment scheme for specially qualified services

03

ARTICLE 316: PEOPLE + TERM

APPOINT: President -> UPSC/Joint | Governor -> SPSC

EXPERIENCE: as nearly as may be half with >=10 years government office

TERM: six years or age ceiling: UPSC 65 | SPSC 62 | JOINT 62

ACTING: 15th Amendment 1963 | AGE: 41st Amendment 1976 | no same-office reappointment

04

ARTICLE 317: REMOVAL

Misbehaviour -> President reference -> Supreme Court inquiry -> report -> President order

Direct grounds: insolvency | paid outside work | qualifying infirmity

Pending reference: President suspends UPSC/Joint | Governor suspends SPSC

Mehar Singh Saini (2010): proved manipulation/integrity failure justified removal finding

05

INDEPENDENCE PACKAGE

318: member/staff regulations + no disadvantageous variation

319: exact post-office progressions; UPSC Chair has strictest bar

322: UPSC -> Consolidated Fund of India | SPSC -> State Consolidated Fund

Limits: executive entry, vacancies, staff dependence, vendors, delay, weak report scrutiny

06

ARTICLE 320: EXAMS + AIS

Government/DoPT: posts + Article 309 rules + roster + cadre

UPSC/SPSC: assigned examination/selection + consultation

Government: service allocation + appointment + training/cadre management

AIS interface: UPSC examination; Article 312/AIS law governs the services

07

CONSULTATION CATALOGUE

A

(a) recruitment methods

B

(b) appointment/promotion/transfer principles + suitability

C

(c) discipline + memorials/petitions

D

(d) official-duty legal costs

E

(e) injury pensions

08

EXCLUSIONS + LATERAL ENTRY

320(4): no required consultation on Article 16(4) manner or Article 335 claims; PSC still applies reservation rules.

Proviso: President/Governor exemption regulations -> legislature.

15 Mar 2024 Union amendment is post/method-specific, not universal lateral-entry exemption.

Test: post -> rules -> method -> equality/reservation -> consultation -> transparent appointment.

09

ARTICLES 321 + 323

321: legislation may extend functions to services/local authority/body corporate/public institution.

323: annual report -> President/Governor -> legislature + rejected-advice cases + reasons.

Advice is generally non-binding, but rejection becomes visible and reviewable.

Joint PSC reports separately for each served State.

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CASE-LAW CONTROL

1957 Manbodhan Lal: consultation
directory: non-consultation alone not ~~data~~ not compel appointment

1984 Jatinder Kumar: recommendation

1985 Ashok Kumar Yadav: bias recusal + interview safeguards

2008 K. Manjusree: no undisclosed late criterion

2010 Mehar Singh Saini: Article 317 integrity inquiry

2024 Tej Prakash Pathak: rule stability + non-arbitrariness

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INTEGRITY + REFORM

question creation -> custody -> centre/CBT -> identity -> audit logs -> incident report -> reasoned remedy

2024 central law: UPSC/listed central exams; check separate SPSC legal coverage.

Reform: transparent member criteria | timely vacancies | professional staff | recusal | secure vendors | grievance timelines

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TRAPS + ANSWER SPINE

TRAPS: Governor appoints SPSC/President removes | UPSC 65 vs SPSC+Joint 62 | advice != appointment | SSC != PSC

ANSWER: define -> exact Article/actor -> claim -> named evidence -> analysis -> qualification -> reform

VERDICT: independent + capable + representative + transparent + correctable recruitment earns trust.